

Nitin Kumar Gupta v. State of U.P.

Allahabad High Court · Division Bench · 21 May 2014 · WRIT - C No. 28135 of 2014 · **EE directed to decide pending clause 6.15 application within one month.**

HEADNOTE

Where a clause 6.15 application for correction of bill amount and address, filed pursuant to an earlier High Court order, remained undecided, the Court treated the Executive Engineer's inaction as contemptuous but granted one further opportunity and issued a time-bound mandamus to consider and decide that application in accordance with the prior direction.

FACTUAL SUMMARY

The petitioner sought correction of the bill amount and the address recorded on his electricity bill. After inaction, Writ-C No. 64415 of 2013 was disposed of on 26 November 2013 with liberty to apply under clause 6.15 of the U.P. Electricity Supply Code, 2005 and a direction to consider that application in accordance with law. He then filed an application dated 21 December 2013, with a certified copy of that order, before the Executive Engineer, Pukhrayan, Kanpur Dehat. The application remaining undecided, he sought a mandamus to have it disposed of.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.15

time-bound disposal of pending clause 6.15 application

HOLDING

Inaction by the Executive Engineer on a consumer's clause 6.15 application filed pursuant to an earlier High Court direction is treated as contemptuous; the Court nonetheless granted one further opportunity and directed the Executive Engineer, Pukhrayan, Kanpur Dehat, to consider and decide the application dated 21.12.2013 in accordance with the order dated 26.11.2013 in Writ-C No. 64415 of 2013 within one month of production of a certified copy. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE CLAIMED BILL-AMOUNT AND ADDRESS CORRECTION UNDER CLAUSE 6.15

The Court did not examine whether the bill or address was wrong; it only directed time-bound consideration of the pending application. ¶ 1